

crowd-cast Data Purchase and Participation Agreement

Between: pdoom UG (haftungsbeschränkt) ("p(doom)")
And: the Participant (upon onboarding), the Participant

What this agreement covers

You are participating in crowd-cast, a research data collection project run by p(doom). crowd-cast is a desktop recorder that captures screen recordings, keyboard/mouse events, and app/window metadata from applications you choose. The goal is to collect real human computer-work data for AI research.

This agreement sets out the terms under which p(doom) purchases accepted research data from you.

Your role

- You are a private individual, not an employee, freelancer, contractor-for-hours, agent, or representative of p(doom).
- There is no employment relationship between you and p(doom).
- You may install and use crowd-cast to passively record your own computer work.
- You decide when and whether to record. p(doom) does not assign tasks, working hours, deliverables, methods, or a work schedule.
- p(doom) does not supervise your work.

What you are paid for

Payment is fixed data acquisition compensation for accepted research data, not compensation for labor time. You are selling data, not working for p(doom).

p(doom) reviews submitted recordings for project relevance, technical quality, and legal/privacy safety. p(doom) may reject or delete data that is staged, mostly idle, private/sensitive, corrupted, legally risky, or otherwise non-qualifying. Only accepted data is eligible for payment.

What you may record

- Your own pre-existing computer work (work you would be doing anyway).
- Work you own or have permission to share.

What you must NOT record

- Employer-confidential or client-confidential material
- NDA-covered work
- Private messages or personal conversations
- Meetings or calls
- Passwords, credentials, or login screens
- Medical, legal, or financial records
- Any material you do not have the right to share

Rights in accepted data

Once data is accepted and paid for, all rights, title, and interest in that data transfer to p(doom). This is a purchase, not a license. Specifically:

- You assign to p(doom) all rights (including any copyright, database rights, and related rights) in the accepted recordings, worldwide, irrevocably, and in perpetuity.

- p(doom) may use, copy, modify, sublicense, sell, license, publish, distribute, and create derivative works from accepted data without restriction. This includes research, dataset construction, AI model training and evaluation, public dataset release, and commercial distribution or sale of the data or derivative works.

- To the extent permitted by applicable law, you waive any moral rights or similar rights in the accepted data.

- These rights survive termination of this agreement. Once data is accepted and paid for, the rights transfer is permanent regardless of whether your participation continues.

Both parties acknowledge that all types of use listed in this agreement (including research, dataset construction, AI model training and evaluation, public dataset release, and commercial distribution) are known and established types of use at the time of this agreement.

You represent and warrant that you have the legal right to provide and sell this data, and that the recordings do not infringe the intellectual property rights, privacy rights, or other rights of any third party.

Indemnification

You agree to indemnify and hold p(doom) harmless from any claims, damages, losses, or expenses (including reasonable legal fees) arising from: (a) your breach of this agreement, (b) your recording of material you did not have the right to share, or (c) any third-party claim that your submitted data infringes intellectual property rights, privacy rights, confidentiality obligations, or other rights.

Limitation of liability

To the maximum extent permitted by applicable law, p(doom)'s total liability to you under this agreement is limited to the total amount p(doom) has paid you in the 12 months preceding the claim. p(doom) is not liable for indirect, incidental, or consequential damages.

Monthly statements

p(doom) may issue monthly Auszahlungsbelege (Data Purchase Statements) documenting each payment. These statements are not invoices under German VAT law (UStG). No VAT is shown and no input VAT (Vorsteuer) is claimed.

Tax responsibility

You are responsible for determining and fulfilling any tax obligations arising from payments you receive under this agreement, in your country of residence or tax jurisdiction. p(doom) does not withhold income tax, wage tax, social security contributions, or VAT for private individual participants unless required by applicable law.

Termination

Either party can end this agreement at any time, for any reason, with no penalty. Just let the other party know. Termination does not affect rights already granted in accepted and paid data.

Governing law

This agreement is governed by German law. If a dispute arises, both parties will try to resolve it informally first.